

Defendant's Evidentiary Objections to Miller Declaration

Obj. No. 1 – **Sustained.**

Conclusion and Ruling

ABM Industries met its initial burden on the motion by presenting facts and evidence demonstrating it was not Whitehead's employer and was not a party to the 2013 Lease Agreement with Flowers by which Whitehead was assigned to work for Flowers. For the reasons detailed above, Plaintiff has not raised triable issues of material fact sufficient to show that there are triable issues as to whether ABM Industries was Whitehead's employer under the respondeat superior, dual employment, or special employment doctrines, or as a member of a single enterprise with ABM General, warranting imposition of liability on ABM Industries for any liability of ABM General for Whitehead's negligence.

The motion for summary judgment in favor of ABM Industries is **granted**.

4. 9:00 AM CASE NUMBER: C24-02472
CASE NAME: VERONICA RAMIREZ VS. ARA HOSPITALITY SERVICES, INC.
LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: RAMIREZ, VERONICA
TENTATIVE RULING:

Plaintiff's unopposed motion to file a First Amended Complaint is **granted**.
Plaintiff shall file the proposed First Amended Complaint within 10 days of August 7, 2026.

Parties are reminded the next Case Management Conference (CMC) is set for September 10, 2026 at 8:30 am in D32. Parties must file updated CMC Statements 10 days prior to the CMC.

5. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
TO CONSOLIDATE HEARINGS
FILED BY: VIGIL, THEODORE JOSEPH
TENTATIVE RULING:

The Court has no jurisdiction as to this motion because this matter remains stayed in view of the referral to arbitration. See line 7.

6. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
VACATE ORDER
FILED BY: VIGIL, THEODORE JOSEPH
TENTATIVE RULING:

The Court has no jurisdiction as to this motion because this matter remains stayed in view of the referral to arbitration. See line 7.